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IN THE CIRCUIT COURT OF THE FIRST CIRCUIT

STATE OF HAWAII

HEIDI AKAU, as Guardian Prochein Ami of
R.A., a minor; TRISHA BOUCHER, as
Guardian Prochein Ami of C.P., a minor;
RHONDA MORALES, as Guardian
Prochein Ami of A.M.S., a minor,

Plaintiffs,

vs.

WANDA VILLAREAL, in her individual
and official capacity; KAPOLEI CHARTER
SCHOOL; DEPARTMENT OF
EDUCATION - STATE OF HAWAII;
HAWAII STATE PUBLIC CHARTER
SCHOOL COMMISSION; JOHN DOES 1-
10; JANE DOES 1-10; DOE
PARTNERSHIPS 1-10; DOE
CORPORATIONS 1-10; ROE "NON-
PROFIT" CORPORATIONS 1-10; ROE
GOVERNMENTAL ENTITIES 1-10,

Defendants.

) CIVIL NO.: 1CCV-20-0000138

) (Assault, Battery, False Imprisonment, Violation of Civil
) Rights Under State Law, Negligence, Defamation, Negligent
) Hiring, Retention and Training, Intentional Infliction of
) Emotional Distress, Negligent Infliction of Emotional
) Distress, Invasion of Privacy, Negligent Failure To Protect
) While In A Fiduciary Capacity, Conspiracy)

) **SECOND AMENDED COMPLAINT;**

) **DEMAND FOR JURY TRIAL; SUMMONS**

SECOND AMENDED COMPLAINT

COME NOW Plaintiffs RANDELL AKAU, CHEVELLE PETER, and ANUHEA MORALES SNELSON, by and through their attorney, for a Second Amended Complaint against the Defendants, respectfully allege and aver as follows:

JURISDICTION AND VENUE

1. This Court has jurisdiction over the subject matter of this action pursuant to HRS § 603-21.5(a)(3).
2. This Court has jurisdiction over the parties in this action pursuant to HRS §§ 634-35(a)(d), 661-1, and 662-2.
3. Venue is proper in this Circuit Court pursuant to HRS § 603-36(5).

PARTIES

4. Plaintiff RANDELL AKAU, hereinafter "Randell," is and was at all relevant times a resident of the City and County of Honolulu, State of Hawai'i.
5. Plaintiff CHEVELLE PETER, hereinafter "Chevelle," is and was at all relevant times a resident of the City and County of Honolulu, State of Hawai'i.
6. Plaintiff ANUHEA MORALES-SNELSON, hereinafter "Anuhe," is and was at all relevant times a resident of the City and County of Honolulu, State of Hawai'i.
7. Defendant WANDA VILLAREAL (hereinafter "Villareal"), was at all times relevant to this action chosen by herself to be the school director of Kapolei Charter School and is named herein as a Defendant in her individual and official capacity. Defendant Villareal participated in the unlawful acts described herein. Defendant Villareal is a resident of the City and County of Honolulu, State of Hawai'i. At all times pertinent hereto, Defendant Villareal was in a conspiracy with other Defendants who engaged in the torts at Villareal's direction.

8. Defendant KAPOLEI CHARTER SCHOOL (hereinafter "Kapolei Charter School" or "KCS") is a public charter school within Hawai'i's statewide school district and is located in the City and County of Honolulu, State of Hawai'i.

9. Defendant DEPARTMENT OF EDUCATION - STATE OF HAWAII (hereinafter "SOH") is a corporate body politic, duly created by law, subject and amenable to the jurisdiction and process of this court and is responsible for the welfare of its students.

10. Defendant HAWAII STATE PUBLIC CHARTER SCHOOL COMMISSION (hereinafter "SPCSC") is the statewide charter school authorizer whose mission is to authorize high-quality public charter schools throughout Hawai'i and is responsible for the welfare of its students.

11. Defendants JOHN DOES 1-10; JANE DOES 1-10; DOE PARTNERSHIPS 1-10; DOE CORPORATIONS 1-10; ROE "NON-PROFIT" CORPORATIONS 1-10; AND ROE GOVERNMENTAL ENTITIES 1-10, are sued herein under fictitious names because their true names and capacities, whether individual, corporate, associate or otherwise are unknown to Plaintiffs, but were in some manner presently unknown to Plaintiffs responsible for the area where Plaintiffs were injured, engaged in activities alleged herein; and/or were in some manner responsible for the injuries and damages to Plaintiffs. Plaintiffs have attempted to ascertain the identity of the Doe Defendants by reviewing all documents in their possession and by questioning available witnesses. When the true names and capacities are ascertained, Plaintiffs will ask for leave to amend this Complaint to state the true names.

FACTUAL ALLEGATIONS

12. Kapolei Charter School opened its doors for the 2017-2018 school year for their inaugural 9th grade class. Defendant Villareal is the self-appointed director of Kapolei Charter

School.

13. Plaintiffs Randell, Chevelle, and Anuheia (hereinafter "Plaintiffs") who, until the torts on October 1, 2019, attended Kapolei Charter School.

14. On September 27, 2019, Plaintiffs went on a school field trip.

15. Sometime after the field trip, Plaintiffs were falsely accused of vaping and smoking marijuana on the school bus while on the field trip.

16. On October 1, 2019, Plaintiffs were all individually ordered into Defendant Wanda Villareal's office and illegally searched, assaulted, battered and had their privacy invaded by Defendant Villareal. Also present was Vice Principal, Mailani Gaspar and another teacher, all of whose engaged in a conspiracy to cover up the assaults by telling Plaintiffs to get back to class.

17. Plaintiffs' parents were not informed that their daughters were to be searched, in violation of school policy and the law, thereby violating Plaintiffs' parental rights.

18. Had they been contacted, Plaintiffs' parents would not have agreed to their daughters being strip-searched by Defendant Villareal.

19. Defendant Villareal asked each Plaintiff to lift up their shirts to their bra line. Defendant Villareal grabbed the middle portion of certain Plaintiffs bra and forced each Plaintiff to jump up and down. Next, Defendant Villareal ordered one of the Plaintiff's to pull her pants down to her knees and patted down each Plaintiff at their waists, hips and buttocks. All these acts were done with malice.

20. Plaintiffs suffered mental anguish, emotional distress, embarrassment, humiliation, worry and anger because of Defendant Villareal's torts while the Vice Principal looked on.

21. After the torts, Plaintiffs were instructed to go back to class.

22. Plaintiffs immediately called their parents after the illegal search. The Honolulu Police Department was called by Plaintiffs of their mothers to report the assault.

23. Plaintiffs stopped attending Kapolei Charter School due to the mental anguish, emotional distress, anxiety, embarrassment, humiliation, anger and retaliation associated with continuing to attend Kapolei Charter School.

CAUSES OF ACTION

24. Plaintiffs re-allege the above paragraphs as though they were fully set forth herein.

25. The searches and assaults, batteries, false imprisonments, and IIED of Plaintiffs violated Plaintiffs' right to privacy under the common law and their rights to be free from unreasonable searches and seizures under the Hawaii State Constitution, Article I §§ 6 and 7.

26. Defendants have deprived Plaintiffs of their constitutional rights and entitlements created by state law without due process when at least one of the Plaintiff's was locked into the assault room.

27. The actions of Defendants constitute illegal searches and seizure of Plaintiffs and violation of well-established constitutional rights of which Defendants knew and chose to violate.

28. Defendant Villareal assaulted and battered Plaintiffs by touching certain Plaintiffs without their consent.

29. Defendants had an enhanced duty to use, maintain and operate Kapolei Charter School in a safe manner particularly for the use of children.

30. Defendants failed to provide Plaintiffs and the students with a safe place to occupy and failed to oversee the well-being of Plaintiffs and instead committed the torts alleged herein.

31. Defendants Kapolei Charter School, SOH and SPCSC knew and should have known that Plaintiffs were subjected to the above assaults and batteries by Defendant Villareal but failed to take prompt and reasonable remedial action, and the actions herein committed were committed jointly and severally by Defendants in conspiracy with others including other teachers at KCS.

32. Because Defendant Villareal is [also] an employee of Kapolei Charter School, besides being named personally, Defendants Kapolei Charter School, SOH and SPCSC are jointly and severally responsible for Defendant Villareal's actions under the theory of respondeat superior since Villareal says she is a State employee and are therefore liable for Defendant Villareal's actions.

33. Defendants breached their aforementioned duties of care by a Charter School with respect to Plaintiffs, including but not limited to, violations of the Kapolei Charter School Student Conduct and Discipline Policy.

34. Defendants knowingly, intentionally, willfully and deliberately caused Plaintiffs to suffer great mental anguish, emotional distress, anxiety, embarrassment, humiliation, worry and anger.

35. Defendants acted negligently in engaging in the searches, thereby committing negligence, causing an infliction of emotional distress of which Plaintiffs suffered.

36. Defendants violated Plaintiffs' right to privacy.

37. That Defendants' actions, and lack thereof, caused Plaintiffs to suffer severe

emotional, psychological and physical damages from the above intentional actions causing intentional and negligent infliction of emotional distress.

. 38. The Defendants failed to take action to prevent further violations of Plaintiffs' rights. Such actions constitute deliberate indifference to Plaintiffs' rights and caused injuries.

39. Defendants KCS, SOH and SPCSC control KCS negligently hired, retained and trained Defendant Villareal and Villareal negligently hired and trained personnel and KCS.

40. Defendants falsely imprisoned Plaintiffs.

41. Defendants maliciously defamed Plaintiffs by accusing them of a crime Plaintiffs did not commit, and Defendant Villareal knew these Plaintiffs had committed no crime but Defendant Villareal engaged in perverse activities despite knowing Plaintiffs were innocent.

PRAYER

WHEREFORE, Plaintiffs pray for judgment in favor of Plaintiffs against the Defendants for damages in excess of the minimum jurisdictional limits of this court as follows:

1. General damages for Plaintiffs' past, present, and future emotional and psychological injuries according to proof;

2. To order Defendants to cease and desist engaging in strip-searches;

3. To order education and training in civil rights for all school directors and principals in Charter Schools;

4. Special damages for Plaintiffs' economic losses and expenses according to proof;

5. Punitive damages from Defendant Villareal;

6. Punitive and exemplary damages according to proof;

7. For pre-judgment interest, Plaintiffs' cost of suit, and attorney's fees; and
8. For such other relief as the court deems just and proper.

Dated: Honolulu, Hawai'i, February 8, 2023.

/s/ William Fenton Sink

WILLIAM FENTON SINK
Attorney for Plaintiffs

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STATE OF HAWAI'I

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RHONDA MORALES, as Guardian	)	Hiring, Retention and Training, Intentional Infliction of
Prochein Ami of A.M.S., a minor,	)	Emotional Distress, Negligent Infliction of Emotional
	)	Distress, Invasion of Privacy, Negligent Failure To Protect
	)	While In A Fiduciary Capacity, Conspiracy)
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GOVERNMENTAL ENTITIES 1-10,	)	
	)	
Defendants.	)	
	)	

DEMAND FOR JURY TRIAL

Plaintiffs hereby demand trial by jury on all claims set forth in this case.

Dated: Honolulu, Hawai'i, February 8, 2023.

/s/ William Fenton Sink

WILLIAM FENTON SINK
Attorney for Plaintiffs